

		establishing this “fact” against Plaintiff, who has not sought, or received, leave to amend this admission. (Code Civ. Proc., § 2033.410, subd. (a).) Because Plaintiff is seeking to recover damages by his UCL claim, the UCL claim is “inextricably bound” to the denial of coverage, and the one-year limitations period applies. (Accord <i>Rosenberg-Wohl v. State Farm Fire & Casualty Co.</i> (2024) 16 Cal.5th 520, 536.) Accordingly, the Court finds that all of Plaintiff’s claims are time-barred, and Defendant is entitled to summary judgment. Defendant’s alternative motion for summary adjudication is moot. Defendant shall give notice of the ruling and submit a proposed judgment to the court and serve it upon all parties. The Jury Trial scheduled for 11/30/26 is vacated.
8.	2025-1478659 Esquivel vs. Toyota Motor Sales, U.S.A., INC	Defendant Toyota Motor Sales, U.S.A., Inc. (“Toyota”) demurs generally to the sixth cause of action for fraudulent inducement – concealment in the First Amended Complaint (“FAC”) filed by Plaintiffs Griselda Esquivel and Beyond Resource Solutions (collectively, “Plaintiff”). Toyota also seeks an order striking Plaintiffs’ prayer for punitive damages in Plaintiffs’ FAC. As an initial matter, the Court notes that once again none of the parties’ proofs of service complied with CCP section 1013b. In addition, Toyota’s proofs of service for Toyota’s reply in support of Toyota demurrer and reply in support of Toyota’s motion to strike states the replies were electronically served to an email address that is not in the Court’s record for Plaintiff’s counsel (SLPCaseDocs+2T2BAMBA5PCO20730Esquivel@slpattorney.com). The Court issues its ruling subject to any objections regarding service of the reply papers. The Court also notes the FAC adds a new plaintiff, Beyond Resource Solutions. No party objected to the addition of the new plaintiff. DEMURRER TO FAC <u>Sixth cause of action for fraudulent inducement – concealment</u> “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (<i>Rattagan v. Uber Technologies</i>,

Inc. (2024) 17 Cal.5th 1, 40; *see, Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248.)

“A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a disclosure duty under the circumstances; (3) the material facts are known or accessible only to defendant, and defendant knows those facts are not known or reasonably discoverable by plaintiff (i.e., exclusive knowledge); (4) the defendant makes representations but fails to disclose other facts that materially qualify the facts disclosed or render the disclosure misleading (i.e., partial concealment); or (5) defendant actively conceals discovery of material fact from plaintiff (i.e., active concealment)...Circumstances (3), (4), and (5) presuppose a preexisting relationship between the parties, such as ‘between seller and buyer, employer and prospective employee, doctor and patient, or parties entering into any kind of contractual agreement. [Citation.] All of these relationships are created by transactions between parties from which a duty to disclose facts material to the transaction arises under certain circumstances.’...’Such a transaction must necessarily arise from direct dealings between the plaintiff and the defendant; it cannot arise between the defendant and the public at large.” (*Rattagan v. Uber Technologies, Inc.*, 17 Cal.5th at 40-41; *see, Blickman Turkus, LP v. MF Downtown Sunnyvale, LLC* (2008) 162 Cal.App.4th 858, 867 [“A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent.”].)

“There are ‘four circumstances in which nondisclosure or concealment may constitute actionable fraud: (1) when the defendant is in a fiduciary relationship with the plaintiff; (2) when the defendant had exclusive knowledge of material facts not known to the plaintiff; (3) when the defendant actively conceals a material fact from the plaintiff; and (4) when the defendant makes partial representations but also suppresses some material facts. [Citation.]” (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 336, citing *Heliotis v. Schuman* (1986) 181 Cal.App.3d 646, 651.)

“Suppression of a material fact is actionable when there is a duty of disclosure, which may arise from a relationship between the parties, such as a buyer-seller relationship.” (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 843.)

Every element of fraud must be pleaded with specificity. The particularity requirement for fraud requires the pleading of facts showing how, when, where, to whom, and by what means the representations were made. (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73.) This is to provide the defendant with notice and to give the court enough information to assess whether there is a foundation for the charge of fraud. (*Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216.) The requirement of specificity in a fraud action against a corporation requires the plaintiff to allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written. (*Tarmann v. State Farm Mut. Auto. Ins. Co.* (1991) 2 Cal.App.4th 153, 157.) Nonetheless, "[l]ess specificity is required when it appears from the nature of the allegations that the defendant must necessarily possess full information concerning the facts of the controversy." (*Committee on Children's Television*, 35 Cal. 3d at 216 [citation and internal quote marks omitted].)

"California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim...For instance, in a case such as this, the court must determine whether the plaintiff has alleged a sufficient factual basis for establishing a duty of disclosure on the part of the defendant independent of the parties' contract. If the duty allegedly arose by virtue of the parties' relationship and defendant's exclusive knowledge or access to certain facts, as Rattagan has alleged here, the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission." (*Rattagan v. Uber Technologies, Inc.*, 17 Cal.5th at 43-44.)

Plaintiffs did not allege sufficient facts with the necessary specificity to state this cause of action. (*See, Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 844.) Accordingly, the demurrer is sustained with 15 days leave to amend.

MOTION TO STRIKE FAC

Toyota seeks an order striking Plaintiffs' prayer for punitive damages from the FAC.

Pursuant to Code of Civil Procedure section 436, the Court may:

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| | <p>(a) Strike out any irrelevant, false, or improper matter inserted in any pleading.</p> <p>(b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.</p> <p>“The grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437, subd. (a).)</p> <p>“[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255.)</p> <p>Plaintiffs may recover exemplary damages in an action for the breach of an obligation not arising from contract if Plaintiffs proves by clear and convincing evidence that Toyota is “guilty of oppression, fraud, or malice.” (Civ. Code § 3294, subd. (a).) Malice is defined as “conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Civ. Code § 3294, subd. (c)(1).) Oppression is defined as “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (Civ. Code § 3294, subd. (c)(2).) Fraud is defined as “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Civ. Code § 3294, subd. (c)(3).)</p> <p>Punitive damages cannot be pled in conclusory terms, instead the facts supporting a claim for punitive damages must be set out clearly, concisely, and with particularity. (<i>Smith v. Superior Court</i> (1992) 10 Cal.App.4th 1033, 1041-1042.) However, “it has long been recognized that ‘(t)he distinction between conclusions of law and ultimate facts is not at all clear and involves at most a matter of degree.’” (<i>Perkins v. Superior Court</i> (1981) 117 Cal.App.3d 1, 6.) “What is important is that the complaint as a whole contain sufficient facts to apprise the defendant of the basis upon which the plaintiff is seeking relief.” (<i>Id.</i>) In ruling on a motion to strike, the Court should “read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth.” (<i>Clauson v. Superior Court</i> (1998) 67 Cal.App.4th 1253, 1255; <i>See Perkins</i>, 117 Cal.App.3d at 6 [“stricken language must be read not in isolation, but in the context of the facts alleged in the rest of petitioner’s complaint.”].)</p> |
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		“When the defendant is a corporation, ‘[a]n award of punitive damages against a corporation...must rest on the malice of the corporation’s employees.’” (<i>Wilson v. Southern California Edison Co.</i> (2015) 234 Cal.App.4th 123, 164 [citing <i>Cruz v. HomeBase</i> (2000) 83 Cal.App.4th 160, 167].) Plaintiffs did not allege sufficient facts with the required specificity to support Plaintiffs’ prayer for punitive damages. Plaintiffs did not allege sufficient facts to state Plaintiffs’ sixth cause of action for fraudulent inducement concealment. Plaintiff did not allege sufficient facts to seek punitive damages against a corporation. Plaintiff may not seek punitive damages for a Song Beverly Act violation. The Song-Beverly Act provides for civil remedies and does not provide for punitive damages. (Civ. Code, § 1794.) California courts have explained that civil penalties “have been likened, by courts, to punitive damages.” (<i>Suman v. Superior Court</i> (1995) 39 Cal.App.4th 1309, 1317, citing <i>Kwan v. Mercedes-Benz of North America, Inc.</i> (1994) 23 Cal.App.4th 174, 184.) A plaintiff may not recover both civil penalties <i>and</i> punitive damages “based upon substantially the same conduct.” (<i>Troensegaard v. Silvercrest Industries, Inc.</i> (1985) 175 Cal.App.3d 218, 226.) Accordingly, Toyota’s motion to strike is granted with 15 days leave to amend. Toyota shall give notice.
9.	2025-1508956 Trejo vs. Cambria Hotel & Suites Anaheim Resort	DEMURRER Defendants Aimbridge Hospitality, LLC’s, Celeste McNees’, Charles McNees’, and CS Anaheim Hotel Investments, LLC’s general demurrer to Plaintiff Erika Trejo’s Complaint is sustained with 15 days leave to amend. The special demurrer is overruled. Plaintiff’s Complaint is not so confusing that Defendants cannot determine tell what they are supposed to respond to. (See <i>Khoury v. Maly’s of Calif., Inc.</i> (1993) 14 Cal.App.4th 612, 616; <i>Williams v. Beechnut Nutrition Corp.</i> (1986) 185 Cal.App.3d 135, 139.) Plaintiff’s opposition was not filed and served until 7/16/26. It was due 9 Court days before the hearing on 7/9/26 pursuant to Code Civ. Proc., § 1005(b). No explanation as to the lateness was provided in the briefing. Also, Plaintiff’s opposition exceeds the 15-page limit under CRC, Rule 3.1113(d), as it is 19 pages. Additionally, the opposition lacks a table of contents and authorities. (See CRC, Rule 3.1113(h))